

Kallu Urf Genderpal v. State of U.P. and others

High Court of Judicature at Allahabad · Division Bench · 29 January 2026 · Writ - C No. 2875 of 2026 · **Writ dismissed; petitioner relegated to Clause 6.5 before the Executive Engineer.**

HEADNOTE

Writ challenging an electricity-department notice dismissed for the alternative statutory remedy under Clause 6.5 of the U.P. Electricity Supply Code, 2005. Petitioner may approach the Executive Engineer; any such application to be decided in accordance with law within four weeks of filing.

FACTUAL SUMMARY

The petitioner, Kallu Urf Genderpal, invoked Article 226 of the Constitution before the Allahabad High Court challenging a notice dated 18 April 2022 issued by the Electricity Department. At the hearing, counsel for respondent Nos. 2 and 3 submitted that Clause 6.5 of the U.P. Electricity Supply Code, 2005 afforded an alternative statutory remedy before the Executive Engineer. The Court did not inquire into the contents or legality of the notice.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.5

alternative statutory remedy before Executive Engineer

HOLDING

A writ petition challenging an electricity-department notice is dismissed where Clause 6.5 of the U.P. Electricity Supply Code, 2005 provides an alternative statutory remedy. The petitioner may approach the Executive Engineer under that clause; any such application shall be decided in accordance with law within four weeks of filing along with a certified copy of the order. ¶ 3-4

PRINCIPLE TAGS

billing-objection-to-executive-engineer-under-6.5

Writ challenging an electricity-department notice dismissed for the alternative statutory remedy under Clause 6.5 of the U.P. Electricity Supply Code, 2005. Petitioner may approach the Executive Engineer; any such application to be decided in accordance with law within four weeks of filing. ¶ 3-4

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — LEGALITY OF THE NOTICE DATED 18.4.2022 ISSUED BY THE ELECTRICITY DEPARTMENT

¶ 2